

25SMCV06118 25SMCV06118

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Case Number: 25SMCV06118 Hearing Date: September 22, 2026 Dept: 205

Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

MILO JEREMIAH SERRANO, et al.,

Plaintiffs,

v.

LUXE SUNSET LLC,

Defendants.

Case No.: 25SMCV06118

Date: September 22, 2026

ORDER RE:

DEFENDANTS' MOTION

FOR LEAVE TO FILE CROSS-

COMPLAINT

BACKGROUND

This is a personal injury case. Plaintiffs were guests at the Luxe Sunset Boulevard Hotel. They went to dinner at a restaurant at the hotel, called Ciracco. The hotel and restaurant are allegedly owned and/or managed by Defendants Luxe Sunset LLC and E.H. Summit, Inc.

Plaintiffs requested a highchair with straps for their son, Plaintiff Milo Jeremiah Serrano. Defendants' employees advised that a highchair was not available and instead supplied a booster seat.

Defendants' employees placed or directed placement of the booster seat on a cushioned dining chair that was not flat or level. The booster seat was not secured to the cushioned chair with appropriate straps, or anti-slip/stability features.

Shortly after seating, the booster seat tipped, causing Milo to fall and strike his head, resulting in brain injury and a brain bleed which required surgery.

The operative complaint alleges claims of (1) negligence, (2) premises liability, (3) negligent undertaking, (4) negligent hiring/training/supervision, and (5) negligent infliction of emotional distress.

This hearing is on Defendants' motion for leave to file cross-complaint. Defendants seek to assert claims of equitable indemnity, apportionment of fault, contribution and declaratory relief against Plaintiff Jonathan Bravo (Milo's father). Defendants allege that since the filing of their answer, they learned that Plaintiff Bravo was seated next to Milo when Milo fell. Bravo was also feeding Milo shortly before Milo fell, and Bravo was the one who placed Milo in the booster seat. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Code of Civil Procedure section 428.10, subdivision (b), authorizes a party against whom a cause of action has been asserted to file a cross-complaint alleging a cause of action against a person alleged to be liable thereon, whether or not that person is already a party, when the proposed cause of action "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).)

A party may file a cross-complaint against a co-party or another person before the court sets a trial date. (Code Civ. Proc., § 428.50(b).) Here, trial has already been set (for November 20, 2028.) Once a trial date has been set, the party must obtain leave of court, which "may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc., § 428.50(c).)

DISCUSSION

Code of Civil Procedure section 426.30 governs compulsory cross-complaints. Subdivision (a) of this statute provides in relevant part: "[I]f a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (Code Civ. Proc., § 426.30, subd. (a), italics added.)

Code of Civil Procedure section 428.10 governs permissive cross-complaints. It provides in relevant part: "A party against whom a cause of action has been asserted . . . may file a cross-complaint setting forth [¶] . . . [¶] (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause

of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b), italics added.)

Here, Defendants seek to bring claims of indemnity and contribution. Neither is a compulsory counterclaim. For statute of limitations purposes, an action for indemnity or equitable contribution does not accrue until payment is made. (Croskey et al., Cal. Practice Guide: Insurance Litigation (The Rutter Group 2017) ¶ 15:297, p. 15-56; see also Fireman's Fund Ins. Co. v. Sparks Const., Inc. (2004) 114 Cal.App.4th 1135, 1151, 8 Cal. Rptr. 3d 446 [claims for equitable indemnity and contribution did not accrue until joint tortfeasor paid injured party's claim]; Smith v. Parks Manor (1987) 197 Cal. App. 3d 872, 879, 243 Cal. Rptr. 256 ["Where the claim is one for indemnification or contribution, it accrues when the indemnitee or party seeking contribution suffers a loss through payment of a judgment debt (or settlement) or through payment of more than his fair share of damages."].) Accordingly, Defendants are not obligated to bring claims for indemnity or contribution until after they have made a payment, which means their indemnity and contribution claims cannot be compulsory counterclaims.

Because the proposed claims are permissive, the standard is not whether Defendants are acting in good faith or bad faith (Code Civ. Proc., §426.50) but whether the amendment is in the interests of justice. (Code Civ. Proc. § 428.50(c).) Permission to file a permissive cross-complaint is solely within the trial court's discretion. (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852; Orient Handel v. United States Fid. and Guar. Co. (1987) 192 Cal.App.3d 684, 701.)

On this record, the Court finds that allowing the filing of the proposed cross-complaint is in the interests of justice. The causes of action asserted in the proposed cross-complaint arise out of the same accident as the causes of action in the Complaint. The interests of efficiency and judicial economy are served by allowing the resolution of all claims between the parties involving this accident in a single proceeding. Given the liberal policy in allowing amended pleadings and cross-complaints and the close relationship between the claims in the complaint and those in the proposed cross-complaint, the motion is granted.

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS Defendants' motion for leave to file a cross-complaint. Defendants are required to file and serve their cross-complaint within 5 days of this Order.

IT IS SO ORDERED.

DATED: September 22, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court